

Criminal Law I

Transitioning from IPC to BNS

CHAPTER XVII

OF OFFENCES AGAINST

PROPERTY

IPC Sections 378-462 | BNS Sections 303-334

Study the complete IPC Chapter XVII sequence, Sections 378-462, alongside BNS Chapter XVII, Sections 303-334. The mapping is based on subject matter and statutory ingredients; a corresponding provision is not necessarily identical in wording, reach or punishment. These are explanatory study notes, not verbatim bare-act text.

85 provision-level references | 10 topic groups | 8 practice problems

Study edition: 5 October 2026. Based on the official BNS Gazette text and commencement notification. Penalty notes concern the cited central BNS text; they are summaries, not verbatim provisions. Read the full applicable enactment for a case.

The IPC chapter numeral XVII is retained. This lesson occupies course position 19 because the course separately includes introductory and lettered IPC chapters.

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Click a contents link to jump to a topic. PDF bookmarks also provide direct access to each of the 85 IPC provisions. IPC Sections 415-417 are placed under Cheating, correcting their position in the supplied list.

Objectives and transition

- Identify possession, dishonest intention, consent, movement, delivery, entrustment and deception in property-offence problems.
- Match each IPC provision from 378 to 462 to the relevant BNS section, subsection or clause.
- Distinguish theft, snatching, extortion, robbery and dacoity, including preparation and attempt offences.
- Separate dishonest misappropriation, criminal breach of trust, receiving stolen property and cheating.
- Apply the restructured mischief tiers and the separate forms of trespass, house-breaking and night aggravation.
- Explain changed thresholds, expanded definitions, new provisions and the law applicable to the date of conduct.

BNS Chapter XVII came into force on 1 July 2024 under S.O. 850(E), dated 23 February 2024. For earlier conduct, examine the IPC and the repeal-and-savings provision in BNS 358; the date a complaint is filed does not by itself select the substantive offence. Article 20(1) of the Constitution prohibits retrospective criminalisation and a greater penalty than the law allowed when the offence was committed. This crosswalk concerns central provisions; special and local laws require separate checking. The monetary thresholds in the user's IPC headings are historical, not current BNS thresholds.

How to read the crosswalk

A BNS label marked consolidated, expanded or restructured is a subject-matter correspondence, not a claim of exact equivalence. IPC 444 and 446 have no separate BNS night-definition sections; the night condition is integrated into aggravated punishment provisions. BNS 304 on snatching is new as a named offence and must not be paired with an invented IPC section.

Of Theft

IPC 378-382

Theft protects possession, not simply ownership. The prosecution must connect dishonest intention with movement of movable property out of another person's possession without consent. A good-faith claim to property may negate dishonesty, depending on the facts. BNS 304 introduces a named snatching offence: sudden, quick or forcible seizure of movable property from a person or their possession in order to steal. Do not call every snatching robbery; apply the additional ingredients of BNS 309. Section 305 is wider than the old dwelling-house provision. The community-service proviso in 303(2) requires all three conditions: value below Rs 5,000, first conviction, and return of the value or restoration of the property.

IPC 378. Theft

BNS reference: 303(1)

Dishonest intention, movable property, another person's possession, absence of consent, and movement for taking must coincide. A severed thing can become movable; consent may be express or implied.

IPC 379. Punishment for theft

BNS reference: 303(2)

General punishment remains up to three years, or fine, or both. BNS adds a one-to-five-year rigorous term with fine for a second or subsequent conviction, and a conditional community-service rule for first-time theft below Rs 5,000.

IPC 380. Theft in dwelling house, etc.

BNS reference: 305(a)

The dwelling/custody-of-property limb is 305(a). Clauses (b)-(e) add transport, goods in transport, religious idols/icons and government/local-authority property; the maximum is seven years and fine.

IPC 381. Theft by clerk or servant of property in possession of master

BNS reference: 306

The employee steals property in the employer's possession; distinguish entrusted property under criminal breach of trust. Maximum seven years and fine.

IPC 382. Theft after preparation for death, hurt or restraint

BNS reference: 307

Preparation may secure the theft, escape or retention of stolen property, and includes preparing to cause the specified fear. Actual injury is not required. Maximum ten years rigorous imprisonment and fine.

Of Extortion

IPC 383-389

Extortion involves delivery induced by fear; theft involves taking without consent. Threats may concern injury to body, mind, reputation or property, or injury to another person, within the applicable definitions. Completed extortion requires the induced delivery. BNS 308(3), (4) and (6) separately punish putting or attempting to put a person in specified fear in order to commit extortion. The subsection order changes: IPC 386 maps to 308(5), IPC 387 to 308(4), IPC 388 to 308(7), and IPC 389 to 308(6).

IPC 383. Extortion

BNS reference: 308(1)

Intentional fear of injury must dishonestly induce delivery of property, valuable security, or a signed/sealed item convertible into valuable security. Fear may concern another person.

IPC 384. Punishment for extortion

BNS reference: 308(2)

Completed ordinary extortion attracts up to seven years, or fine, or both under BNS, rather than IPC's three-year maximum.

IPC 385. Putting person in fear of injury in order to commit extortion

BNS reference: 308(3)

Putting or attempting to put a person in fear for the purpose of extortion is punishable without proving completed delivery. Maximum two years, or fine, or both.

IPC 386. Extortion by fear of death or grievous hurt

BNS reference: 308(5)

Completed extortion using this aggravated fear carries up to ten years and fine. Do not confuse it with the preparatory/intimidatory offence in 308(4).

IPC 387. Fear of death or grievous hurt in order to commit extortion

BNS reference: 308(4)

Putting or attempting to put a person in this fear for extortion, without completed delivery, carries up to seven years and fine.

IPC 388. Extortion by threat of accusation of a serious offence

BNS reference: 308(7)

Completed extortion by the specified serious-offence accusation attracts up to ten years and fine. The IPC's express section 377-related limb is not reproduced; this is not an exact textual replacement.

IPC 389. Fear of accusation of offence in order to commit extortion

BNS reference: 308(6)

The in-order-to-commit variant covers fear or attempted fear of accusation of the specified serious offences, with up to ten years and fine. The old IPC 377-specific extension is not reproduced.

Of Robbery and Dacoity

IPC 390-402

Robbery is aggravated theft or extortion, not an independent alternative lacking those foundations. In theft-based robbery the specified violence or instant fear must be for committing the theft or carrying away the property. Extortion-based robbery additionally requires the offender's presence (sufficient nearness), instant fear and then-and-there delivery. Dacoity requires a statutory total of five or more conjoint offenders/present aiders. BNS specifically punishes preparation and assembly for dacoity. Joint liability under 309(6) and 310(3) has its own conditions; do not assume that the individual deadly-weapon aggravation in 311 automatically applies to every companion.

IPC 390. Robbery; when theft or extortion is robbery

BNS reference: 309(1)-(3)

For theft, the specified violence, restraint or instant fear must be for the theft or carrying away. Extortion becomes robbery when presence, instant fear and then-and-there delivery coincide.

IPC 391. Dacoity

BNS reference: 310(1)

Five or more must conjointly commit or attempt robbery; persons present and aiding count towards the statutory total. Mere presence without aiding is not enough.

IPC 392. Punishment for robbery

BNS reference: 309(4)

Maximum ten years rigorous imprisonment and fine; highway robbery between sunset and sunrise can extend to fourteen years.

IPC 393. Attempt to commit robbery

BNS reference: 309(5)

A specific attempt provision: up to seven years rigorous imprisonment and fine. Prove conduct amounting to an attempt, not only preparation.

IPC 394. Voluntarily causing hurt in committing robbery

BNS reference: 309(6)

Hurt during committing or attempting robbery attracts life imprisonment or rigorous imprisonment up to ten years and fine, extending to others jointly concerned in that robbery or attempt.

IPC 395. Punishment for dacoity

BNS reference: 310(2)

Life imprisonment or rigorous imprisonment up to ten years and fine. Establish the five-person conjoint-robbery requirement first.

IPC 396. Dacoity with murder

BNS reference: 310(3)

Where one of five or more conjoint dacoits murders during the dacoity, the statutory liability reaches each; punishment is death, life imprisonment, or rigorous imprisonment of at least ten years, and fine.

IPC 397. Robbery or dacoity with deadly weapon, grievous hurt or attempted death/grievous hurt

BNS reference: 311

The offender's use of a deadly weapon, causing grievous hurt, or attempt to cause death/grievous hurt sets a minimum seven-year term. This is distinct from mere armed presence during an attempt.

IPC 398. Attempted robbery or dacoity when armed with deadly weapon

BNS reference: 312

Being armed with a deadly weapon at the time of an attempted robbery/dacoity sets a minimum seven-year term. Contrast the use requirement in 311's weapon limb.

IPC 399. Making preparation to commit dacoity

BNS reference: 310(4)

An express offence at the preparation stage, punishable by rigorous imprisonment up to ten years and fine.

IPC 400. Belonging to a gang of dacoits

BNS reference: 310(6)

Membership of a gang associated for habitual dacoity attracts life imprisonment or rigorous imprisonment up to ten years and fine; distinguish a one-off assembly.

IPC 401. Belonging to a gang of thieves

BNS reference: 313

Covers a gang habitually committing theft or robbery, other than a gang of dacoits. Maximum seven years rigorous imprisonment and fine.

IPC 402. Assembling for the purpose of dacoity

BNS reference: 310(5)

Five or more assembled for that purpose; maximum seven years rigorous imprisonment and fine. Do not interchange 310(5) and the habitual-gang rule in 310(6).

Of Criminal Misappropriation of Property

IPC 403-404

Property may be innocently received but later dishonestly converted. A finder taking reasonable steps to return property is different from someone who appropriates it while knowing, or having means to discover, the owner. Reasonable time and reasonable means are factual questions. Temporary dishonest conversion can suffice. The deceased-person offence requires knowledge of possession at death and that no legally entitled person has since possessed the property.

IPC 403. Dishonest misappropriation of property

BNS reference: 314

Dishonest appropriation or conversion of movable property may arise after innocent receipt. Temporary misappropriation counts. BNS prescribes six months to two years and fine.

IPC 404. Misappropriation of property possessed by a deceased person

BNS reference: 315

Knowingly converting property held by the deceased before it reaches a legally entitled possessor attracts up to three years and fine; a clerk/servant at the death faces up to seven years.

Of Criminal Breach of Trust

IPC 405-409

Start with entrustment of property or dominion over it, then identify dishonest use, conversion or disposal contrary to law or the relevant legal contract, or wilfully allowing another to do so. The special-capacity variants require entrustment in that capacity. Ordinary non-performance or an honest investment error is not automatically criminal. A servant stealing the employer's property is analysed under 306; a servant dishonestly diverting entrusted property is analysed under 316(4).

IPC 405. Criminal breach of trust

BNS reference: 316(1)

Entrustment or dominion plus dishonest conversion/use/disposal contrary to the trust is essential. Mere breach of a contract is not automatically criminal breach of trust.

IPC 406. Punishment for criminal breach of trust

BNS reference: 316(2)

Ordinary breach of trust attracts up to five years, or fine, or both, increased from the IPC maximum of three years.

IPC 407. Criminal breach of trust by carrier, etc.

BNS reference: 316(3)

Entrustment as carrier, wharfinger or warehouse-keeper plus breach in that capacity: up to seven years and fine.

IPC 408. Criminal breach of trust by clerk or servant

BNS reference: 316(4)

Property or dominion must have been entrusted in that employment capacity. Maximum seven years and fine; contrast theft under 306.

IPC 409. Criminal breach of trust by public servant, banker, merchant or agent

BNS reference: 316(5)

Entrustment in the specified public or business capacity attracts life imprisonment or up to ten years and fine; the list also includes factor, broker and attorney.

Of Receiving Stolen Property

IPC 410-414

The receiving offences depend on both the property's status and the accused's knowledge or reason to believe. BNS 317(1) expands the definition to include cheating-derived property. The special dacoity-source, habitual-dealing and concealment-assistance variants must be proved separately. The definition applies to relevant transfers/misappropriation/breach of trust within or outside India, but the property loses its stolen character when it reaches someone legally entitled to possess it.

IPC 410. Stolen property

BNS reference: 317(1)

BNS expressly includes possession transferred by cheating as well as theft, extortion, robbery, misappropriation and breach of trust. Property ceases to be stolen when received by a legally entitled possessor.

IPC 411. Dishonestly receiving stolen property

BNS reference: 317(2)

Dishonest receipt or retention plus knowledge or reason to believe the property is stolen: up to three years, or fine, or both.

IPC 412. Receiving property stolen in dacoity

BNS reference: 317(3)

Aggravated knowledge concerning dacoity or a dacoit-gang source must be proved. Life imprisonment or rigorous imprisonment up to ten years and fine.

IPC 413. Habitually dealing in stolen property

BNS reference: 317(4)

Habitual receipt/dealing with knowledge or reason to believe: life imprisonment or up to ten years and fine. One isolated receipt does not establish habitual dealing by itself.

IPC 414. Assisting concealment of stolen property

BNS reference: 317(5)

Voluntary assistance in concealment, disposal or making away, with knowledge or reason to believe it stolen: up to three years, or fine, or both.

Of Cheating

IPC 415-420

Sections 415-417 belong with Cheating, rather than Receiving Stolen Property. Identify the deception, inducement, dishonest/fraudulent intention or intentional harmful act/omission, and causal result required by the relevant limb. In a promise-to-perform case, dishonest intent at inducement distinguishes cheating from a later civil breach. BNS 318(4), the IPC 420 counterpart, is not a catch-all for every unpaid debt. Personation under 319 needs cheating through the specified false identity, including a real or imaginary person.

IPC 415. Cheating

BNS reference: 318(1)

Deception must induce the specified delivery/retention or harmful act/omission. Dishonest concealment is deception. In a broken-promise problem, examine intention at the time of inducement.

IPC 416. Cheating by personation

BNS reference: 319(1)

Cheating by pretending to be another, substitution, or false identity representation. The person imitated may be real or imaginary.

IPC 417. Punishment for cheating

BNS reference: 318(2)

Ordinary cheating attracts up to three years, or fine, or both, rather than IPC's one-year maximum. Delivery-of-property cases need the separate analysis under 318(4).

IPC 418. Cheating with knowledge of likely loss to a protected interest

BNS reference: 318(3)

The offender must be bound by law or legal contract to protect that person's interest in the transaction and know wrongful loss is likely. Maximum five years, or fine, or both.

IPC 419. Punishment for cheating by personation

BNS reference: 319(2)

Maximum five years, or fine, or both, increased from the IPC maximum of three years.

IPC 420. Cheating and dishonestly inducing delivery of property

BNS reference: 318(4)

Deception causing dishonest inducement to deliver property or make/alter/destroy a valuable security (or convertible signed/sealed item): up to seven years and fine.

Of Fraudulent Deeds and Dispositions of Property

IPC 421-424

These offences target specified dishonest or fraudulent dealings, not every disputed transfer or financial failure. Section 320 concerns defeating lawful creditor distribution; 321 concerns preventing a debt/demand being available for creditors; 322 concerns a transfer/charge instrument containing the specified false particulars; and 323 covers concealment/removal or dishonest release of a claim. A title defect, a false statement and forgery are different issues: document-forgery offences in BNS Chapter XVIII require their own ingredients.

IPC 421. Removal or concealment to prevent distribution among creditors

BNS reference: 320

Dishonest/fraudulent removal, concealment, delivery or inadequate-consideration transfer to defeat lawful creditor distribution. BNS specifies six months to two years, or fine, or both.

IPC 422. Preventing a debt being available for creditors

BNS reference: 321

Dishonestly/fraudulently keeping a debt or demand from lawful debt payment attracts up to two years, or fine, or both. Inability to pay alone does not prove this offence.

IPC 423. Deed of transfer with false statement of consideration

BNS reference: 322

Dishonest/fraudulent participation in a property-transfer/charge instrument with false consideration or beneficial-interest particulars: up to three years, or fine, or both.

IPC 424. Dishonest or fraudulent removal or concealment of property

BNS reference: 323

Covers concealment/removal, assistance, and dishonest release of a demand or claim. Maximum three years, or fine, or both.

Of Mischief

IPC 425-440

Mischief requires intended or knowingly likely wrongful loss/damage through destruction or an injurious change in property or its situation. It may affect one's own or jointly owned property. BNS 324(3) provides up to one year for property damage, 324(4) up to two years for Rs 20,000 to below Rs 1 lakh, and 324(5) up to five years for Rs 1 lakh or more; each allows fine or both. Animal-value thresholds are removed in 325, and the old fire-damage thresholds are removed in 326(f). The specific water, transport, navigation, landmark and fire provisions must not be replaced mechanically by the generic value tiers.

IPC 425. Mischief

BNS reference: 324(1)

Intended or knowingly likely wrongful loss/damage through destruction or injurious change in property. An offender can commit mischief affecting their own or jointly owned property.

IPC 426. Punishment for mischief

BNS reference: 324(2)

Basic punishment is up to six months, or fine, or both. Additional damage-based tiers appear in 324(3)-(5).

IPC 427. Mischief causing damage of fifty rupees or more (IPC)

BNS reference: 324(3)-(5), restructured

No identical Rs 50 threshold survives. BNS 324(3) covers property damage; 324(4) specifies Rs 20,000 to below Rs 1 lakh, and 324(5) Rs 1 lakh or more. Choose the applicable tier on facts.

IPC 428. Mischief by killing or maiming animal worth ten rupees (IPC)

BNS reference: 325, consolidated

BNS combines the animal offences and removes the old monetary threshold. Killing, poisoning, maiming or rendering any animal useless as mischief attracts up to five years, or fine, or both.

IPC 429. Mischief by killing or maiming cattle, etc. (IPC)

BNS reference: 325, consolidated

The old species/value distinctions are replaced by any-animal coverage in BNS 325. The ingredients of mischief still have to be established.

IPC 430. Mischief affecting irrigation or water supply

BNS reference: 326(a)

Covers specified diminution of water for agriculture, food/drink, cleanliness or manufacture; up to five years, or fine, or both.

IPC 431. Mischief affecting public road, bridge, river or channel

BNS reference: 326(b)

Making the specified public/navigable routes impassable or less safe for travel or property conveyance: up to five years, or fine, or both.

IPC 432. Inundation or obstruction of public drainage

BNS reference: 326(c)

Inundation or public-drainage obstruction attended with injury or damage: up to five years, or fine, or both.

IPC 433. Destroying or moving lighthouse or sea-mark (IPC)

BNS reference: 326(d), expanded

BNS uses wider wording for signs/signals guiding rail, aircraft and ship navigation and other navigational guides. Maximum seven years, or fine, or both.

IPC 434. Destroying or moving a public-authority landmark

BNS reference: 326(e)

Destroying, moving or reducing the utility of a landmark fixed by a public servant's authority: up to one year, or fine, or both.

IPC 435. Mischief by fire/explosive with specified monetary damage (IPC)

BNS reference: 326(f), changed thresholds

BNS covers intended or knowingly likely damage to any property, including agricultural produce, without the old Rs 100/Rs 10 thresholds. Maximum seven years and fine.

IPC 436. Fire/explosive intended to destroy house, etc.

BNS reference: 326(g)

Covers buildings ordinarily used for worship, dwelling or custody of property. Life imprisonment or up to ten years and fine.

IPC 437. Mischief to destroy or make unsafe a decked or twenty-ton vessel

BNS reference: 327(1), expanded

BNS also expressly covers rail and aircraft, retaining the specified vessel categories. Maximum ten years and fine.

IPC 438. Mischief under IPC 437 by fire or explosive

BNS reference: 327(2), expanded

BNS covers commission or attempt by fire/explosive of the expanded 327(1) offence. Life imprisonment or up to ten years and fine.

IPC 439. Intentionally running vessel aground or ashore to commit theft, etc.

BNS reference: 328

Intent to enable theft or dishonest misappropriation of cargo/property is essential. Maximum ten years and fine.

IPC 440. Mischief after preparation for causing death or hurt

BNS reference: 324(6)

Preparation includes wrongful restraint and fear of death, hurt or restraint. Maximum five years and fine; actual injury is not essential to this preparation-based variant.

Of Criminal Trespass

IPC 441-462

Criminal trespass concerns another's possession and the specified intent on entry or unlawful remaining. A civil title disagreement alone is not enough. House-trespass requires the specified premises; lurking requires concealment precautions. House-breaking includes six statutory entry/exit methods: a made passage, an unintended passage/scaling, an abnormally opened passage, opening a lock, force/assault/threat, or unfastening a known-fastened passage. BNS does not separately define the old night labels: after sunset and before sunrise appears in 331(2), (4), (6) and (8). Keep purpose-based house-trespass (332), preparation-based house-trespass (333), and closed-receptacle offences (334) distinct.

IPC 441. Criminal trespass

BNS reference: 329(1)

Entry on another's possession with intent to offend, intimidate, insult or annoy; alternatively lawful entry followed by unlawful remaining with specified intent. A title dispute alone is insufficient.

IPC 442. House-trespass

BNS reference: 329(2)

Criminal trespass into/remaining in the specified dwelling, worship or property-custody premises. Introduction of any part of the body is sufficient entry.

IPC 443. Lurking house-trespass

BNS reference: 330(1)

Precautions to conceal the house-trespass from someone entitled to exclude/eject the trespasser distinguish it from ordinary house-trespass.

IPC 444. Lurking house-trespass by night

BNS reference: 330(1) read with 331(2), (4), (6), (8)

No separate BNS definition labelled 'by night'; the aggravated provisions expressly use after sunset and before sunrise. Match the additional purpose, preparation or injury facts.

IPC 445. House-breaking

BNS reference: 330(2)

House-trespass through any of six specified modes of entry or exit. Physical breakage is not indispensable: opening a lock or using assault may qualify.

IPC 446. House-breaking by night

BNS reference: 330(2) read with 331(2), (4), (6), (8)

The IPC standalone night definition is not repeated; BNS attaches after-sunset/before-sunrise conditions directly to the relevant punishment provisions.

IPC 447. Punishment for criminal trespass

BNS reference: 329(3)

Maximum three months, or fine up to Rs 5,000, or both. Distinguish criminal intent from a mere civil possession dispute.

IPC 448. Punishment for house-trespass

BNS reference: 329(4)

Maximum one year, or fine up to Rs 5,000, or both.

IPC 449. House-trespass to commit an offence punishable with death

BNS reference: 332(a)

Life imprisonment or rigorous imprisonment up to ten years and fine. Prove the intended offence and its punishment category.

IPC 450. House-trespass to commit an offence punishable with life imprisonment

BNS reference: 332(b)

Maximum ten years and fine; distinguish the death-punishable category under 332(a).

IPC 451. House-trespass to commit an offence punishable with imprisonment

BNS reference: 332(c)

Maximum two years and fine; if the intended offence is theft, the maximum rises to seven years.

IPC 452. House-trespass after preparation for hurt, assault or restraint

BNS reference: 333

Preparation for hurt, assault, wrongful restraint or the specified fear: up to seven years and fine. Lurking/breaking variants are instead in 331(5)-(6).

IPC 453. Punishment for lurking house-trespass or house-breaking

BNS reference: 331(1)

Maximum two years and fine under BNS, increased from IPC's one-year maximum.

IPC 454. Lurking house-trespass/house-breaking to commit an imprisonable offence

BNS reference: 331(3)

Maximum three years and fine; up to ten years if theft is the intended offence.

IPC 455. Lurking house-trespass/house-breaking after preparation for violence

BNS reference: 331(5)

The specified hurt, assault, restraint or fear preparation carries up to ten years and fine.

IPC 456. Lurking house-trespass or house-breaking by night

BNS reference: 331(2)

After sunset and before sunrise: up to three years and fine. Use the more specific subsection when further aggravating facts are established.

IPC 457. Night lurking house-trespass/house-breaking to commit an imprisonable offence

BNS reference: 331(4)

Maximum five years and fine; up to fourteen years if theft is the intended offence.

IPC 458. Night lurking house-trespass/house-breaking after preparation for violence

BNS reference: 331(6)

Night plus the specified preparation for hurt, assault, restraint or fear: up to fourteen years and fine.

IPC 459. Grievous hurt during lurking house-trespass or house-breaking

BNS reference: 331(7)

Causing grievous hurt or attempting death/grievous hurt during the offence: life imprisonment or up to ten years and fine.

IPC 460. Joint liability for death/grievous hurt in night lurking house-trespass/house-breaking

BNS reference: 331(8)

If one participant voluntarily causes or attempts death/grievous hurt, every person jointly concerned in the night offence faces the statutory liability: life imprisonment or up to ten years and fine.

IPC 461. Dishonestly breaking open a receptacle containing property

BNS reference: 334(1)

Dishonesty or intent to commit mischief, a closed receptacle containing or believed to contain property, and breaking/unfastening: up to two years, or fine, or both.

IPC 462. Same offence by a person entrusted with custody

BNS reference: 334(2)

Entrusted custody without authority to open plus dishonest/mischievous breaking or unfastening: up to three years, or fine, or both.

Revision and exam method

- Theft: IPC 378-382 -> BNS 303, 305-307; snatching in BNS 304 is a distinct addition.
- Extortion: IPC 383-389 -> BNS 308(1)-(7), with reordered aggravated subsections.
- Robbery/dacoity: IPC 390-402 -> BNS 309-313; dacoity requires five or more.
- Misappropriation: IPC 403-404 -> BNS 314-315; breach of trust: IPC 405-409 -> BNS 316.
- Stolen property: IPC 410-414 -> BNS 317; cheating/personation: IPC 415-420 -> BNS 318-319.
- Fraudulent property dispositions: IPC 421-424 -> BNS 320-323.
- Mischief: IPC 425-440 -> BNS 324-328; old value thresholds and some coverage change.
- Trespass and receptacles: IPC 441-462 -> BNS 329-334; night definitions are integrated into aggravated provisions.

For each problem state the date and applicable law; identify the property/possession, act, mental element, delivery or entrustment, and any violence, number of participants, special capacity, value or night condition. Cite the exact BNS subsection, apply each ingredient and explain any change from IPC. Do not conclude that a civil dispute alone proves fraud, breach of trust or trespass.

High-yield distinctions

- Taking without consent / fear-induced delivery / deception-induced delivery: theft, extortion and cheating use different routes to loss of property.
- Innocent receipt followed by conversion / entrustment followed by dishonest misuse: misappropriation and breach of trust differ on entrustment.
- Theft with preparation for violence (307) / robbery with connected violence or instant fear (309): preparation and actual aggravation must be separated.
- Ordinary house-trespass / lurking / house-breaking / night aggravation: identify each extra ingredient before choosing a subsection.

Practice questions and model answers

Self-check exercises. These are study questions, not a timed or graded assessment.

1. A person pockets a phone, then a companion restrains the owner to enable escape with it. Is this necessarily only simple theft?

Model answer: No. Consider theft-based robbery under 309(2): restraint used for carrying away the stolen property can supply the additional ingredient. Assess each participant's role and applicable joint-liability rule.

2. An email threatens reputational injury unless money is sent, but no money or security is delivered. Which distinction matters?

Model answer: Completed extortion under 308(1) requires induced delivery. The in-order-to-commit fear offence under 308(3) may apply if its ingredients are proved.

3. Four people commit robbery. Does calling them a gang automatically establish dacoity?

Model answer: No. Section 310(1) requires five or more conjoint offenders/present aiders. Identify any additional proven participant rather than assuming one.

4. An employee takes cash from an employer's locked drawer; another employee diverts money entrusted for deposit. What is the key distinction?

Model answer: The first may involve theft under 306; the second may involve breach of trust under 316(4). Entrustment and dishonest conversion must be established on the facts.

5. A contractor honestly intends performance when taking an advance, but later fails to complete the work. Is that alone cheating?

Model answer: No. A subsequent contractual breach alone does not prove dishonest inducement at the outset. Examine the statutory deception and intention requirements under 318.

6. For a first conviction for theft of Rs 4,000 with full restoration, what special rule should be discussed?

Model answer: The proviso to 303(2) prescribes community service when all its conditions are met. It does not legalise theft below Rs 5,000 or apply merely because the amount is small.

7. Ordinary mischief causes loss of Rs 25,000. Is the historical IPC Rs 50 tier the BNS test?

Model answer: No. Examine 324(4), covering Rs 20,000 and more but less than Rs 1 lakh, and check whether any more specific aggravated provision applies.

8. A trespasser opens a locked door with a found key after sunset. Must a door be physically smashed for house-breaking?

Model answer: No. Opening a lock can fall under 330(2)(d). House-trespass and relevant night conditions must also be established before applying 331.

Official sources

Primary reading and source scope

Bharatiya Nyaya Sanhita, 2023 - official Gazette, Chapter XVII (printed pages 78-92), and section 358

[Open official source](#)

BNS commencement notification S.O. 850(E), 23 February 2024

[Open official source](#)

Indian Penal Code, 1860 - India Code, historical Chapter XVII

[Open official source](#)

The complete BNS Chapter XVII appears on Gazette printed pages 78-92. The commencement notification fixes 1 July 2024 for these provisions. The IPC link is historical reading; use the relevant version for the date and jurisdiction. The supplied IPC headings have been normalised for spelling and grouping.

These explanatory notes were prepared for legal education. A section mapping does not establish liability without proof of the statutory ingredients. Subsequent amendments, special statutes and applicable local provisions must be checked for a live matter.